

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2013-1962

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
VICTORIA HAMILTON, LICENSE NO. LPC 6521,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("the Board") and Victoria Hamilton ("Respondent") as
follows:

1. The Board has jurisdiction over the person of Respondent and the subject
matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in
the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case No. 2013-1962. This Order
does not resolve any other cases, complaints, or matters, known or unknown to the Board or
Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around March 2013, Respondent admitted to a coworker that she
was attracted to client AT.
 - b. Respondent failed to maintain appropriate boundaries with AT,
including having coffee with AT.
 - c. Respondent failed to immediately refer AT to another practitioner.
 - d. On or around August 5, 2014, Respondent submitted to an evaluation,
and the evaluator stated that Respondent was not safe to practice
professional counseling with reasonable skill and safety to clients. The

evaluator also recommended that Respondent enter into a rehabilitation contract with Peer Assistance Services, Inc. ("PAS").

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(g) and (i), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanctions that the Board believes is necessary to protect the public health, safety, and welfare.

7. Respondent is not currently practicing professional counseling in the State of Colorado. Should Respondent seek to resume the practice of professional counseling in the State of Colorado, she must first notify the Board in writing of her intent to resume practice in the State of Colorado and submit an application to reinstate her LPC license to active status, if applicable.

PROBATION

8. If and when the Board authorizes Respondent to resume the practice of professional counseling in the State of Colorado, Respondent shall be on probation for a minimum period of two (2) years. Credit toward satisfying the period of probation shall be given only during such periods of time that Respondent is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Respondent is not practicing as a LPC or engaged in the practice of professional counseling in the State of Colorado; and
- b. Respondent is not actively participating in a Board-approved peer assistance services program as set forth below in paragraph 9 of this Order; and
- c. Respondent is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES

9. As a term of this Order and Respondent's probationary status, Respondent shall enter into and successfully complete a contract with PAS for a minimum period of two (2) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later. Respondent must enter into a contract with PAS within fourteen (14) days of being authorized by the Board to resume the practice of professional counseling in the State of Colorado, or Respondent agrees to cease practice after fourteen (14) days until such time as Respondent enters into a contract with PAS.

a. **Urine/Blood Screens.** As required as a term of her contract with PAS, Respondent shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Respondent's employer, or Respondent's treatment program monitor, at a frequency determined by Respondent's contract with PAS. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's treatment program with Respondent's application for discharge of the probation period.

b. **Other Requirements.** Respondent shall comply fully and in a timely manner with all requirements, recommendations, and directions of the treatment program, as administered by PAS. Requirements, recommendations, and directions may include but shall not be limited to:

i. **Submission by Respondent to such examinations as PAS may deem appropriate to determine Respondent's physical or mental condition or Respondent's professional qualifications (the parameters of any such examination shall be specified to the extent possible to pinpoint the underlying condition for which the examination is being required);**

ii. **The taking by Respondent of such therapy courses or training or education as may be needed to correct deficiencies found by such examination;**

iii. **The review or supervision of Respondent's practice as may be necessary to determine the quality of Respondent's practice and to correct deficiencies therein; and**

iv. **The imposition of restrictions upon the nature of Respondent's practice to assure that Respondent does not practice beyond the limits of her capabilities.**

c. **Releases.** Respondent hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Respondent's case to the Board upon its request. Respondent shall keep all releases current and in effect.

d. **Completion of Program.** If Respondent satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed

satisfied, unless other information is reasonably required by the Board to verify Respondent's completion of treatment. It is Respondent's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

e. Withdrawal from Program. Respondent must immediately notify the Board in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's treatment program.

PRACTICE MONITOR

10. During the term of probation, and as a term of her contract with PAS, Respondent's practice shall be monitored by a practice monitor. Prior to resuming the practice of professional counseling in the State of Colorado, Respondent must have a Board-approved practice monitor ("practice monitor") in place. During the term of probation, Respondent's practice shall be monitored by the practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential practice monitor with attached curriculum vita or resume. The proposed practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the practice monitor have a minimum of five years of experience and not have been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

11. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. Respondent shall not perform any act requiring a license to practice professional counseling until such time as the Board has approved Respondent's practice monitor.

12. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, all investigative reports, all practice evaluation reports and all mental status evaluation reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients,

informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

13. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for at least one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

14. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

15. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice, her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

16. If the Board determines from the practice evaluation report that Respondent cannot practice any part of her practice with skill and safety for her clients in accordance with generally accepted standards of practice and/or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease the practice of professional counseling or any part of the practice that the Board determines, based on the practice evaluation report, she is not qualified, competent, and/or safe to conduct. Based on the Board's findings and the practice evaluation report, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for her clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and/or safe to practice. Once Respondent satisfies the Board that she is qualified, competent, and/or safe to fully practice, Respondent may resume full practice.

17. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

18. If at any time PAS or the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, and/or

has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, the Board will make the determination as to whether or not Respondent is able to practice with reasonable skill and safety and whether emergency action should be taken under §§24-4-104 and 12-43-224(2)(c)(II), C.R.S.

19. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

20. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent does not have another practice monitor in place before the termination date, Respondent shall cease the practice of professional counseling until she has another Board-approved practice monitor in place.

TERMS AND CONDITIONS

21. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

22. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

23. All expenses incurred or associated with the practice evaluation, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

24. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

25. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

26. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

27. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

28. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

29. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

30. Respondent shall obey all state and federal laws while this Order is in effect.

31. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

32. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

33. This Order shall be admissible as evidence at any hearing held before the Board.

34. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT

Victoria Hamilton
VICTORIA HAMILTON
LPC NO. 6521 12/29/14

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

Catherine Rodriguez for J.A.
JACQUINE ARCELIN
Program Director

Effective this 2nd day of

September, 2015.